

LAW AND MOTION TENTATIVE RULINGS
DATE: SEPTEMBER 15, 2026 TIME: 8:30 A.M.

... .” (Opp. at p. 4.) Plaintiff has not provided this Court with any admissible evidence as to his theory that defendant fraudulently concealed a transmission issue in this case involving plaintiff’s vehicle. There is no evidence of plaintiff’s vehicle having a transmission problem (other than his deposition testimony about a “surge”), let alone evidence of a transmission issue that is of the same type that defendant allegedly kept concealed from its consumers. While the allegations in the SAC may be sufficient to overcome a statute of limitations defense raised on demurrer, they are insufficient to create a triable issue of material fact at summary judgment. “Evidentiary facts are required to support a summary judgment. Conclusions of fact or law are not sufficient.” (Weil & Brown *Civil Proc. Before Trial* (TRG 2026) § 10:119.)

Defendant’s motion from summary judgment is granted because the fraudulent inducement-concealment cause of action is barred by the applicable statute of limitations. Plaintiff failed to raise a triable issue as to the application of tolling of this time limit. Because this ruling is dispositive of the entire case, the Court declines to rule on the other bases for summary judgment defendant raises.

No. 23CV00035

KEYES v. BAKER

**(UNOPPOSED) PLAINTIFF’S MOTION TO COMPEL RESPONSES TO
REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE; FORM
INTERROGATORIES, SET ONE; SPECIAL INTERROGATORIES, SET ONE
AND TO DEEM ADMITTED ALL MATTERS SPECIFIED IN REQUEST FOR
ADMISSIONS, SET ONE AND FOR SANCTIONS**

The unopposed motions are granted.

This is a dispute involving a loan. Peter Keyes, now deceased, sold 330 River Road, Boulder Creek, CA to defendants Edsel and Susan Baker. The Keyes received a promissory notice and deed of trust in the amount of \$260,000.00 from the Bakers. The Bakers took a home equity line of credit against the property. The Bakers allegedly stopped making payments as promised to the Keyes in 2020. In the interim the Bakers sold the property to now-dismissed defendants Travis and Lindsey Barron and Chri Boardman. Plaintiff alleges various causes of action against the Bakers including elder abuse, breach of contract, conversion, quiet title and she seeks declaratory relief and for a constructive trust.

On October 20, 2025, plaintiff served requests for admission set one; requests for production of documents, set one; and form and special interrogatories on defendants Susan and

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Edsel Baker, through their counsel. (Decl. of Rossi, Exs. A-H.) Plaintiff asserts the Bakers failed to respond. Plaintiff seeks an order compelling the Bakers to serve verified responses without objections to this discovery, to produce responsive documents and to deem as admitted the request for admissions. Plaintiff also seeks sections. There is no opposition to this motion.

“If a party to whom interrogatories were directed fails to serve a timely response, the propounding party may move for an order compelling responses and for a monetary sanction. [Citation.]” (Weil & Brown *Civil Proc. Before Trial* (TRG 2026) §8:137.) Further, “[a]ll that need be shown in the moving papers is that a set of interrogatories was properly served on opposing party, that the time to respond has expired, and that no responses of any kind has been served.” (Weil & Brown *Civ. Pro. Before Trial* (TRG 2026) §8:1140; Code of Civ. Pro. § 2030.290, subd. (b).) “The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code of Civ. Proc. § 2030.290, subd. (c).)

“Where there has been no timely response to a CCP §2031.010 demand, the first thing the demanding party must do is to seek an ordering compelling a response. [CCP §2031.300].” (Weil Brown *Civil Procedure Before Trial* (TRG 2026) § 8:1483.) Failure to respond timely waives all objections. “If a motion to compel responses is filed and a party properly asks for monetary sanctions, the court ‘shall’ impose a monetary sanction against the losing party *unless* it finds that party made or opposed the motion ‘with substantial justification’ or other reasons make the sanction ‘unjust.’” (Weil & Brown *Civ. Pro. Before Trial* (TRG 2026) § 8:1488.)

If a party to whom requests for admission have been directed fails to serve a timely response, the requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction pursuant to Section 2023.030 of the Code of Civil Procedure.” (Code Civ. Proc., § 2033.280, subd. (b).) Monetary sanctions are mandatory if requested. (Code Civ. Proc., § 2033.280, subd. (c).)

Therefore, the matters specified in requests for admission, set one, (Exhibits G-H to Decl. of Rossi) are deemed admitted. (Code Civ. Proc., § 2033.280, subd. (b).) This will be the order of the Court unless defendants serve, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Code of Civil Procedure section 2033.220. The Bakers are ordered to serve verified, Code-compliant responses, without objections, to the remaining discovery requests attached as Exhibits A-F to the declaration of Rossi. Those responses are to be served within 20 days from the date of this hearing.

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Plaintiff requests sanctions. "A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought." (Code Civ. Proc., § 2023.040.) The Court notes that the notice here requests sanctions but does not specify the amount sought and the identity of the person against whom the sanctions are sought. However, in the memorandum of points and authorities, plaintiff requests sanctions in the amount of \$4,180.00 against the Bakers pursuant to Code of Civil Procedure sections 290.290, subd. (c) and 231.300, subd. (c) and the declaration of Rossi outlines the amount of time they claim to have spent on this motion at the rate of \$410/hour [7 hours of attorney time preparing the motion plus an anticipated 3 hours to review the opposition and preparing reply, Decl. of Ross at ¶8.] "An omission in the notice may be overlooked if the supporting papers make clear the grounds for the relief sought." (*Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1125.) Plaintiff has provided the grounds for monetary sanctions for bringing this motion. The Bakers did not file an opposition so the Court will not award any fees based upon anticipated work. The Court awards \$2870.00 in sanctions against the Bakers, to be paid within 30 days.